

1.

CASE #	CASE NAME	HEARING NAME
CVPS2202954	LAPAY VS THE FAIRWAYS HOMEOWNER'S ASSOCIATION	MOTION TO BE RELIEVED AS COUNSEL FOR THE FAIRWAYS HOMEOWNER'S ASSOCIATION,, THE J.N. LEWIS GROUP, INC.

Tentative Ruling:

Motion to be Relieved as Counsel for Plaintiff Simone Marie Lapay GRANTED.

Attorney JC Chimoures is relieved as counsel of record for Plaintiff, effective upon the filing of the proof of service of the signed court order upon the client.

OSC re status of representation for Plaintiff Simone Marie Lapay is set for 7.20.26.

Hearing for Motion on Attorney's Fees is confirmed for 8.31.26.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2501178	NEUMANN VS DALTON	MOTION TO SET ASIDE DEFAULT, DEFAULT JUDGMENT, BY DIANNE DALTON

Tentative Ruling: An application for mandatory relief based on an attorney affidavit of fault must be made "no more than six months after entry of judgment." (C.C.P. §473(b).) Unlike the excusable neglect provisions, there need be no showing of diligence in seeking relief short of the six-month time limit. (*Metropolitan Service Corp. v. Casa de Palms, Ltd.* (1995) 31 Cal.App.4th 1481, 1488.) The six-month period starts with entry of the default judgment, not the default. (*Sugasawara v. Newland* (1994) 27 Cal.App.4th 294, 297.)

The motion must state that it seeks mandatory relief under C.C.P. §473; if the motion refers only to discretionary relief, the court need not set aside the default even if the motion is accompanied by an affidavit indicating the attorney was at fault. (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1125.) The motion must also be accompanied by a copy of the answer or other pleading proposed to be filed. (C.C.P. §473(b).)

Relief must be granted even where the default resulted from inexcusable neglect by defendant's attorney, "so long as the attorney affidavit of fault shows the error was the fault of the attorney rather than the client." (*Jimenez v. Chavez* (2023) 97 Cal.App.5th 50, 57.) An admission of fault that does not include an explanation of the reason for the fault may still be sufficient (*Martin Potts & Associates, Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 442-443), but because the court may deny relief if it finds the default or dismissal "was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect" (*Jimenez*, 97 Cal.App.5th 50, 57), the explanation of the reasons "can serve as a causation testing device" in determining whether the neglect was caused by the client or the attorney. (*Martin Potts & Associates*, 244 Cal.App.4th 432, 442 [internal quotation marks omitted].)